COMMONWEALTH OF KENTUCKY
SUPREME COURT OF KENTUCKY

CASE NO. 2024-SC-371-D

MERCY REGIONAL EMERGENCY MEDICAL SYSTEM, LLC, et al

APPELLANTS

V.

THE ESTATE OF JOSHUA ADAM FUSON, by administratrixes, AMY HICKMAN & DAFFENY SNEED FUSON, et al

APPELLEES

BRIEF FOR APPELLEES

Brief for the Appellees for the Estate of Joshua Adam Fuson by administratrixes Amy Hickman and Dafney Sneed Fuson, et al.

Submitted by:

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CERTIFICATE OF SERVICE

I certify that a true and accurate copy of the foregoing document has been served by efiling and/or mailing on July 1, 2025 upon the following:

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Hon. Judge Joseph Roark
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Counsel certifies that he has not removed the record from the Office of the Clerk of the McCracken Circuit Court.

/s/ D. Chad McCoy
Hon. D. Chad McCoy
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STATEMENT OF THE CASE AND RELEVANT FACTS

The litigation underlying this appeal involved multiple parties and complex medical and factual issues. Appellants Mercy Regional EMS and Scott Hendrickson (collectively "Mercy") were not added to the litigation until after substantial discovery revealed inconsistencies in the EMS records and affidavits provided early in the matter.

1. On June 28, 2018 Fuson's Estate requested EMS records from Mercy via a medical authorization. On August 30, 2018, Mercy produced two pages of records and an affidavit indicating this was all the records related to Fuson from March 25, 2018. See Appendix Tab A Affidavit of Record Custodian. The records provided related to an ambulance run from the McCracken County Detention Center to the local hospital. As additional discovery revealed, those three pages were not the full records in Mercy's possession.
2. In March of 2021, Fuson's Estate subpoenaed records from Mercy Regional Medical to which Mercy did not comply. TR. 426-421
3. After communication with Mercy's counsel, on August 10, 2021, a records deposition was conducted of Jeremy Jeffrey, as director of Mercy Regional EMS. In that deposition, Mercy was represented by the Honorable Tim Hutchins, an attorney with the firm Keuler, Kelly, Hutchins, Blankenship & Sigler, LLP. See Appendix Tab B Deposition of Jeremy Jeffrey, August 10, 2021, 2:12-14 ("Jeffrey Depo").
4. Testimony and on the record statements during the deposition clarify that the Appellees had attempted to subpoena Mercy's medical records related to their involvement with Mr. Fuson. However, Mercy had refused to comply with the subpoena citing HIPPA. Ultimately, by the end of the deposition, the records were identified and agreed to be produced. Jeffrey Depo 7:2-15
5. On August 17, 2021, the Mercy records were received by the Appellees.
6. Those records consisted of 10 pages, not just three, and they documented two different run reports related to the three interactions Mercy had with Mr. Fuson on the night of his death. See Appendix Tab C Medical Records Provided by Mercy.
7. Those records, on their face, indicate that Mercy had evaluated Mr. Fuson, taken vital signs and concluded that Mr. Fuson did not need medical care.
8. Similarly, Scott Hendrickson, the paramedic for Mercy who was on the scene and responsible for completing the records had provided an affidavit confirming the

evaluation of Mr. Fuson, the vital signs taken and the conclusion that Mr. Fuson did not require medical care. See Appendix Tab D Affidavit of Scott Hendrickson.

9. Despite not being produced when requested, the EMS run reports and affidavit provided by Mr. Hendrickson showed no basis for bringing Mercy Regional nor any of its employees into this matter.
10. However, during a deposition taken of Mr. Hendrickson on March 21, 2022, Mr. Hendrickson admitted that contrary to the medical records and contrary to his affidavit, he did not know Mr. Fuson's vital signs at the time Mr. Fuson was taken to jail. See Appendix Tab E Deposition Excerpts of Scott Lee Hendrickson dated March 21, 2022 19:07-22 ("Henrickson Depo1").
11. Mr. Hendrickson testified that the affidavit he signed was prepared by Stacey Blankenship, Attorney for the City of Paducah defendants and a partner with the firm Keuler, Kelly, Hutchins, Blankenship & Sigler, LLP. Mr. Hendrickson's attorney for this deposition, like the earlier Jeremy Jeffrey deposition, was Tim Hutchins. Hendrickson Depo1 38:09-22.
12. When deposed on May 8, 2023, Mr. Hendrickson confirmed that in many places the medical records were not accurate and/or in conflict with his affidavit. See Appendix Tab F Deposition Excerpts of Scott Lee Hendrickson dated May 8, 2023 88:09-90:13 ("Hendrickson Depo2").
13. Within months of getting the medical records and learning that the affidavit and records were not accurate, leave was requested to add Mercy and its employees to this matter. TR 880-918.

SUMMARY OF ARGUMENT

The Kentucky Court of Appeals correctly held that KRS 413.170(1) tolls the statute of limitations for claims by minors, regardless of whether a next friend files suit on their behalf. The Appellants' arguments attempt to add unwritten exceptions to the statute and rely on an unpublished decision that has been rejected by multiple courts interpreting the same language.

I. KRS 413.170 PRESERVES THE CLAIMS OF MINOR CHILDREN

KRS 413.170(1) plainly tolls the statute of limitations for minors. Appellants' claim that filing through a next friend removes this tolling effect finds no support in the statute or

published case law. Kentucky and federal courts have consistently held that the tolling applies unless and until the minor reaches the age of majority.

The Appellants acknowledge that KRS 413.170(1) operates to toll the statute of limitations for infants and for people with a disability. Nevertheless, they allege that the statute does not apply in this case since the minor daughters filed suit through their mother as next of friend. The only support for this position that the Appellants have been able to find is an unpublished Kentucky court of appeals case from 2007 - Tallman v. City of Elizabethtown, No. 2006-CA-002542, 2007 WL 3227599 (Ky.App. Nov. 2, 2007).

Interestingly, all other cases decided after Tallman that have analyzed this issue have rejected to follow Tallman. In *Bradford v. Bracken County*, 767 F. Supp 2d 740, 745 (E.D.Ky 2011), the court analyzed the issue as follows:

> Plaintiff N.B. argues that the statute of limitations for his state law claim does not expire until one year after he reaches the age of majority. KRS § 413.170(1) provides:
> ***
> Defendants argue that, notwithstanding its plain language, KRS § 413.170(1) does not apply here because Plaintiff N.B. "elected to initiate litigation through his parent as Next Friend." In support, Defendants emphasize Tallman v. City of Elizabethtown, No. 2006-CA-002542, 2007 WL 3227599, at *3 (Ky.App. Nov. 2, 2007), in which the court held that KRS § 413.170 did not apply because "the children's claims were prosecuted on their behalf by their mother, as guardian and next friend." The Kentucky court offered no additional explanation.
> Defendants acknowledge that two recent federal courts interpreting the same statute reached the opposite conclusion. First, in *Martin v. Celadon Trucking Servs., Inc.*, No. 5:05-cv-00101, 2006 U.S. Dist. LEXIS 4923, 2006 WL 181864, at *2 (W.D.Ky. Jan. 17, 2006), the court found that "[t]he appointment of a guardian did not alter" the right provided by KRS § 413.170. The court contrasted KRS § 342.210, which expressly provides that in a workers' compensation claim the statute of limitations begins to run on the appointment of a guardian, with KRS § 413.170, which includes no such language. Id. Consequently, the court "rule[d] that the appointment of a guardian did not remove" the disability of being a minor. Id.
> Defendants argue that Martin does not address the specific facts here, where the minor initiated an action "by a Next Friend against certain defendants within the normal limitations period, and then later against other defendants." Defendants also contend that "the paternalistic premise underlying such a tolling statute (i.e., that a minor is not capable or sophisticated [enough] to act on their rights) is simply not present when the next friend procedure is utilized." Absent any authority lending this factual distinction or policy argument dispositive weight, the Court follows Martin's lead in applying the plain language of the statute.
> This conclusion finds support in T.S. v. Doe, No. 5:10-cv-217, 2010 U.S. Dist. LEXIS 107088, 2010 WL 3941868, at *2-4 (E.D.Ky. Oct. 6, 2010), which rejected an argument similar to Defendants'. The defendants there relied on Tallman to argue "that the benefit of KRS § 413.170 is lost once

> a minor proceeds in a lawsuit by Next Friend." 2010 U.S. Dist. LEXIS 107088, at *3. The court reviewed analogous case law, observed that the Tallman court reached its decision without supporting authority or discussion, and concluded that KRS § 413.170's savings provision, unlike KRS § 342.210, "has no exceptions for a committee, guardian or next friend." 2010 U.S. Dist. LEXIS 107088, [WL] at *4. Defendants do not address T.S.'s rationale or attempt to distinguish it.
> Absent direct state precedent on the issue, the Court is left to "anticipate how the relevant state's highest court would rule in the case." Scottsdale Ins. Co. v. Flowers, 513 F.3d 546, 563 (6th Cir. 2008) (quoting In re Dow Corning Corp., 419 F.3d 543, 549 (6th Cir. 2005)). Because "Defendant[s'] interpretation would require this Court to add an exception to the statute that the legislature did not provide," the Court concludes that KRS § 413.170 tolled Plaintiff N.B.'s state law claim. T.S., 2010 WL 391868, at *4.

Bradford v. Bracken County, 767 F. Supp. 2d 740, 752-753.

Other unpublished Kentucky Court of Appeals cases have also addressed the issue since Tallman and have followed the express language of KRS 413.170. In cases of loss of parental consortium, there is also the applicability of KRS 413.170(1). As set forth above, while adult children may not bring a loss of consortium action under the laws of this Commonwealth, minor children may bring the action after they reach adulthood under KRS 413.170(1). As a result, years pass before claims are brought.

Thornsberry v. Ky. Power Co., Nos. 2007-CA-002167-MR, 2007-CA-002201-MR, 2009 Ky. App. Unpub. LEXIS 740 (Ct. App. Aug. 28, 2009).

Finally, in *Sandmann v. Gannett Co.*, No. 2:20-CV-0026 (WOB-CJS), 2021 U.S. Dist. LEXIS 3792 (E.D. Ky. Jan. 8, 2021) the federal court summed up the analysis in footnote 7 as follows:

> As this Court has found, Sandmann's complaint is not barred by the statute of limitations because Ky. Rev. Stat. § 413.170(a) tolled his claim because Sandmann had not yet reached the age of eighteen. Like other defendants, Gannett relies erroneously on Tallman v. City of Elizabethtown, No. 20006-CA-002542, 2007 Ky. App. Unpub. LEXIS 835, 2007 WL 3227599 (Ky. Ct. App. Nov. 2, 2007).
> ***
> This Court is unpersuaded that the Kentucky Supreme Court would agree with Tallman because it cites no authority for its holding, which conflicts with the plain language of the savings statute (since the statute makes no exception to the tolling of the limitations period for claims brought by a minor).
> *Sandmann v. Gannett Co.*, No. 2:20-CV-0026 (WOB-CJS), 2021 U.S. Dist. LEXIS 3792, at *5 n.7 (E.D. Ky. Jan. 8, 2021)

II. IT IS NEITHER THE DUTY NOR THE PREROGATIVE OF THE JUDICIARY TO BREATHE INTO THE STATUTE THAT WHICH THE LEGISLATURE HAS NOT PUT THERE

The legislature in Kentucky has declared that any person subject to a disability has any applicable statute of limitations tolled until the removal of the disability. In KRS 413.170(1) the legislature expressly stated:

> If a person entitled to bring any action mentioned in KRS 413.090 to 413.160, except for a penalty or forfeiture, was, at the time the cause of action accrued, an infant or of unsound mind, the action may be brought within the same number of years after the removal of the disability or death of the person, whichever happens first, allowed to a person without the disability to bring the action after the right accrued.
> KRS § 413.170.

This statute is plain, unequivocal and without ambiguity. KRS 446.080(1) directs that "[a]ll statutes of this state shall be liberally construed with a view to promote their objects and carry out the intent of the legislature[.]" *Active Care Chiropractic, Inc. v. Rudd*, 556 S.W.3d 561, 564 (Ky. 2018). The courts in Kentucky have long stated and adhered to the principle that the courts cannot act for the legislative branch. When language is clear and unambiguous, it will be held to mean what it plainly expresses. Gilbert v. Greene, 185 Ky. 817, 216 S.W. 105. Where the Legislature has made no exception to the positive terms of a statute, the presumption is that it intended to make none, and it is not the province of a court to introduce an exception by construction. 25 R. C. L. 972; Young v. Bank of Alexandria, 4 Cranch 384, 2 L. Ed. 655. The power to create exceptions by construction can never be exercised where the words of the statute are free from ambiguity, and its purpose plain.

> *Hawley Coal Co. v. Bruce*, 252 Ky. 455, 458, 67 S.W.2d 703, 705 (1934). Without fail this principle of statutory construction and separation of powers has been espoused and followed by Kentucky courts.

This Court's goal, in construing statutes, "is to give effect to the intent of the [legislature]. We derive that intent . . . from the language the [legislature] chose, either as defined by the [legislature] or as generally understood in the context of the matter under consideration." Livingood, 467 S.W.3d at 256 (internal quotations and citations omitted).

***

Moreover, "it is neither the duty nor the prerogative of the judiciary to breathe into the statute that which the Legislature has not put there.'" Wilson v. SKW Alloys, Inc., 893 S.W.2d 800, 802, 42 3 Ky. L. Summary 11 (Ky. App. 1995) (quoting *Gateway Constr. Co. v. Wallbaum*, 356 S.W.2d 247, 248-49 (Ky. 1962)).

Active Care Chiropractic, Inc. v. Rudd, 556 S.W.3d 561, 564 (Ky. 2018)

This Court is imbued neither with policymaking nor police powers. Instead, our function is to interpret what a statute says and apply it to a particular set of facts.

When interpreting a statute, "[a] well-established rule of statutory construction is that the courts will consider the purpose which the statute is intended to accomplish—the reason and spirit of the statute—the mischief intended to be remedied." City of Louisville v. Helman, 253 S.W.2d 598, 600 (Ky. 1952) (citations omitted). On the other hand, "[i]t is neither the duty nor the prerogative of the judiciary to breathe into the statute that which the Legislature has not put there. The humane spirit of the statute does not warrant its extension beyond its legitimate scope." Faust v. Commonwealth, 142 S.W.3d 89, 94-95 (Ky. 2004) (quoting *Gateway Constr. v. Wallbaum*, 356 S.W.2d 247, 248-49 (Ky. 1962)). As we recently stated, "Legislative intent is paramount when construing a statute." Martin v. Warrior Coal, LLC, 617 S.W.3d 391, 394 (Ky. 2021).

Tractor Supply v. Wells, 647 S.W.3d 192, 195 (Ky. 2022)

The interpretation of a statute is a matter of law. "As with any case involving statutory interpretation, our duty is to ascertain and give effect to the intent of the General Assembly." Beckham v. Board of Education, Ky., 873 S.W.2d 575, 577 (1994). An appellate court is not at liberty to add or subtract from the legislative enactment nor discover meaning not reasonably ascertainable from the language used. *Commonwealth v. Frodge*, Ky., 962 S.W.2d 864, 866 (1998). Further, it is neither the duty nor the prerogative of the judiciary to breathe into the statute that which the Legislature has not put there. Gateway Construction Co. v. Wallbaum, Ky., 356 S.W.2d 247 (1962).

Commonwealth v. Gaitherwright, 70 S.W.3d 411, 413 (Ky. 2002)

Further, there are other statutes where the legislature has expressly created the exception to KRS 413.170 that Appellants presume the court to make here. The fact that no such exception has been made by the general assembly is compelling. The Kentucky Federal Court explained in *Martin v. Celadon Trucking Servs., Inc.*, No. 5:05-cv-00101, 2006 U.S. Dist. LEXIS 4923, 2006 WL 181864, at *2 (W.D.Ky. Jan. 17, 2006), "[t]he appointment of a guardian did not alter" the right provided by KRS § 413.170. The court contrasted KRS § 342.210, which expressly provides that in a workers' compensation claim the statute of limitations begins to run on the appointment of a guardian, with KRS § 413.170, which includes no such language. Id. Consequently, the court "rule[d] that the appointment of a guardian did not remove" the disability of being a minor. Id.

III. POLICY SUPPORTS TOLLING FOR MINORS UNTIL MAJORITY

Adopting Appellants' view would create an unworkable patchwork system where minors could lose rights without their knowledge. The statutory tolling protects vulnerable litigants and promotes fairness in civil procedure. As explained, KRS 413.170(1) protects minors' personal injury claims, including Victoria and Aubrey Fuson's consortium claims, for up to one year from the time they reach age eighteen. No exception exists in KRS 413.170(1) for adult "next friends" who elect to assert some claims on behalf of a minor. If there was any doubt, this Court put that issue to rest in *Azmat as Next Friend of Azmat v. Bauer*, 588 S.W.3d 441, 452 (Ky. 2018) (holding "next friend" is not the real party in interest and that KRS 413.170(1) continues to apply during litigation).

> Actions involving unmarried infants or persons of unsound mind shall be brought by the party's guardian or committee, but if there is none, or such guardian or committee is unwilling or unable to act, a next friend may bring the action." Kentucky Rules of Civil Procedure (CR) 17.03(1). "[T]he 'next friend' device is a procedural one by which a minor's claim is brought into court and a person acting as such is only a nominal party with no unilateral statutory or other authority to settle the minor's claim." *Jones By and Through Jones v. Cowan*, 729 S.W.2d 188, 190 (Ky. App. 1987) (emphasis added)
>
> *Azmat v. Bauer*, 588 S.W.3d 441, 445-46 (Ky. 2018)

It is axiomatic then if a next of friend may not settle a claim, a next of friend may not waive a claim either. The entire logic and policy behind the tolling for an infant is designed to ensure that a person has the right and capacity to bring their own claims. It has long been the law of the Commonwealth that an infant or a person of unsound mind may bring an action within the applicable statute of limitations after a disability has been removed.

> ***
>
> see also *Newby's Adm'r v. Warren's Adm'r*, 277 Ky. 338, 126 S.W.2d 436 (Ky. 1939) (The statute of limitations does not begin to run until the individual under disability is capable of bringing suit.). "A cause of action accrues when a party has the right and capacity to sue[.]" *Creson v. Scott*, 275 S.W.2d 406, 408 (Ky. 1955). Thus, trial courts must be cautious in such cases as this so as not to dismiss the case with prejudice, and thereby foreclose the disabled party from any future ability to pursue his or her claim. The proper procedure is for the trial court to abate the action pending procurement of replacement counsel, and, if such attempt is not successful, dismiss the case without prejudice, leaving available to the real party in interest the ability to bring his or her

claims when minority or disability is removed, or the party is otherwise able to present his case to the courts.

> *Azmat v. Bauer*, 588 S.W.3d 441, 448 (Ky. 2018); see also *E.M. v. House of Boom Ky., LLC* (In re Miller), 575 S.W.3d 656 (Ky. 2019); *Branham v. Stewart*, 307 S.W.3d 94 (Ky. 2010).

Kentucky law has long recognized the distinction between a statutory guardian and a mere next of friend. The major difference between a next friend and a statutory guardian is that the latter can compromise and settle claims and enter a binding contract on the minor's behalf and the former cannot. The negative holding in *Ambrose v. Graziani*, 197 Ky. 679, 247 S.W. 953, 954 (1923), disposes of the argument that a next friend should be held to have the authority to compromise a claim for unliquidated damages by declaring in regard to a statutory guardian and a next friend:

> The guardian has given a bond to account to his infant ward, while the next friend has given none. If the guardian makes a fraudulent or improvident settlement of a claim of his ward he is liable therefore to the ward, while a next friend has no bond and there is no assurance that any right may be enforced against him.

Jones v. Cowan, 729 S.W.2d 188, 189-90 (Ky. App. 1987).

Appellant asks the court here to ignore the statutory distinction and read into the statute a power of a next of friend to waive a claim, with no accountability. That has never been the law in Kentucky.

Further, the Appellant's position would lead to massive delays in all claims by minors. Logically, if, as Appellants' acknowledge, a minor can bring a claim anytime up until one year after their age of majority – but if they do beforehand they waive any claims they may have that are not brought at the same time – there would be no reason to bring claims early. Instead, the prudent course would be for an attorney to send a preservation of evidence letter and then, sit on the claim until the age of majority.

IV. EQUITABLE RELIEF REQUIRES CLEAN HANDS

Lastly, Appellants make a final attempt to argue around the plain language of the tolling statute with an equitable argument – something akin to laches or unfair delay. However, Kentucky has long followed the doctrine of unclean hands for those seeking equitable relief.

> There is an ancient as well as favorite maxim in equity jurisprudence which, Anglicized, says: "He who comes into equity must come with clean hands." It is sometimes thus stated: "Whoever appeals to a court of equity for relief must do so with clean hands and with an apparently clear

> conscience," and again: "He that hath committed iniquity shall not have equity."
> *Dunscombe v. AMFOT Oil Co.*, 201 Ky. 290, 292, 256 S.W. 427, 428 (1923)

Here, the Appellees acted carefully and thoughtfully to involve in this litigation only parties where evidence pointed to negligence. Initially, Appellees sought, through a medical record request, all of Mercy's records related to Mr. Fuson. A mere three pages was produced along with a signed affidavit that these three pages were the sum total of the records that existed.

Further discovery revealed the possible existence of additional records, and a subpoena was issued. Mercy chose not to comply with the subpoena citing HIPPA. Why the Estate Representing a decedent would need to comply with HIPPA was never explained.

When the records finally came to light, an affidavit prepared by an attorney representing another party to the matter was provided that painted a picture of a proper evaluation and medical decision made by Mercy's employees. However, at deposition it was revealed that the affidavit and the medical records were misleading – there was no evaluation of Mr. Fuson. The vital signs that appear to be recorded as of the time of the incident were not pulled from the EKG machine until well after Mr. Fuson had died.

At every turn in this litigation, Mercy obfuscated the fact that its employees had no information about Mr. Fuson's medical condition when they allowed him to be taken to the jail and not the hospital. The failure to evaluate him is the negligent conduct, the basis for their inclusion in this matter. They cannot fail to produce documents; delay matters with unsupported claims of HIPPA and provide misleading affidavits prepared by attorneys for other parties to the case and then complain they were not added in a timely manner – there must be clean hands.

CONCLUSION

The Court of Appeals in this instance unanimously agreed that the statute and case law make it clear that a minor's statute of limitations does not begin to run until the minor turns 18. KRS 413.170. The statute is not ambiguous, the law is not in a state of flux or controversy – to the contrary, except for a 2007 unpublished opinion, the matter has been consistently held accordingly.

Respectfully submitted,

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